

Court No. - 17

Case :- WRIT - C No. - 3291 of 2022

Petitioner :- Electricity Distribution Division Iii Gonda Thru
Ex. Eng. Prasoon Tyagi

Respondent :- State Of U.P. Thru. Prin. Secy. Home Sectt. Lko.
And Others

Counsel for Petitioner :- Neera Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Shree Prakash Singh,J.

Heard learned counsel for the petitioner, Sri Gopal Krishna Pathak, learned Additional Chief Standing Counsel for the State and perused the record.

The instant writ petition has been filed with a prayer for quashing the impugned order dated 12.04.2022 passed by respondent no. 2 i.e. Electricity Consumer Grievance Redressal Forum, Gonda District, Gonda.

Learned counsel for the petitioner submits that opposite party no. 3 i.e., Indus Tower Limited is a company set up a cellular mobile tower at Kalyanpur, Rupaideeh, Gonda and has obtained electricity connection bearing A/C No. 731803385518 on 21.10.2010 and the meter was also installed over there. She further added that supply of the electricity was given to the opposite party no. 3 from the urban feeder but the opposite party no. 3 kept on paying the aforesaid bill as per the rural electricity connection. She submits that tariff is fixed for such urban electricity connections and therefore the bill was amended and it was given to the respondent no. 3. Being aggrieved, the respondent no. 3 approached the Electricity Consumer Grievance Redressal Forum Gonda wherein the redressal forum has passed the order on 12.04.2022. The electricity bill amounting Rs. 73,20,037/- was turned down. She submits that while passing the aforesaid order the redressal forum has also directed that the electricity department will not charge any tariff on the basis of the delay. She submits that infact the aforesaid finding of the redressal forum goes against the Clause 6.12 and 6.13 of the U.P. Electricity Supply Code, 2005 which are quoted hereasunder:-

"6.12 3(1) Application of the Amount Received

[In case of bill payment by the consumer, adjustments shall be made in the following order of priority: -

(a) Arrear

(b) Current charges

(c) Miscellaneous charges

Electricity Charges including Electricity Duty and Late Payment Surcharge shall be adjusted in proportion of their total amount of arrear as well as current charges.]

6.13 Rebate and Late Payment Surcharge

Rebate and Surcharge for delayed payment shall be levied as per the tariff order applicable."

She submits that in view of the aforesaid, the order dated 12.04.2022 assails illegality and infirmity and is liable to be set aside.

Let notice be issued to the respondent no. 3, returnable at an early date.

Put up this matter on 14th July, 2022.

The respondents may file counter affidavit.

In the meantime, the order dated 12.04.2022 passed by opposite party no. 2 shall remain stayed till the next date of listing.

Order Date :- 30.5.2022

Ujjawal

Court No. - 20

Case :- WRIT - C No. - 3291 of 2022

Petitioner :- Electricity Distribution Division Iii Gonda Thru
Ex. Eng. Prasoon Tyagi

Respondent :- State Ofu.P. Thru. Prin. Secy. Home Sectt. Lko.
And Others

Counsel for Petitioner :- Neera Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Manish Kumar,J.

List in the next cause list.

Interim order, if any, to continue till the next date of listing.

Order Date :- 14.7.2022

S. Kumar

Court No. - 20

Case :- WRIT - C No. - 3291 of 2022

Petitioner :- Electricity Distribution Division Iii Gonda Thru
Ex. Eng. Prasoon Tyagi

Respondent :- State Ofu.P. Thru. Prin. Secy. Home Sectt. Lko.
And Others

Counsel for Petitioner :- Neera Yadav

Counsel for Respondent :- C.S.C.,Gaurav Mehrotra,Maria
Fatima,Mohd. Kausar Jah

Hon'ble Manish Kumar,J.

List this case in the next cause list.

Interim order, if any, to continue till the next date of listing.

Order Date :- 21.7.2022

S. Kumar

Court No. - 20

Case :- WRIT - C No. - 3291 of 2022

Petitioner :- Electricity Distribution Division Iii Gonda Thru Ex. Eng.
Prasoon Tyagi

Respondent :- State Of U.P. Thru. Prin. Secy. Home Sectt. Lko. And
Others

Counsel for Petitioner :- Neera Yadav

Counsel for Respondent :- C.S.C., Gaurav Mehrotra, Maria Fatima, Mohd.
Kausar Jah

Hon'ble Manish Kumar, J.

Adjourned on account of illness of Ms. Neera Yadav, learned counsel for the petitioner.

List this case in the next cause list.

Order Date :- 4.8.2022

Nitesh

Court No. - 25

Case :- WRIT - C No. - 3291 of 2022

Petitioner :- Electricity Distribution Division Iii Gonda Thru Ex. Eng.
Prasoon Tyagi

Respondent :- State Ofu.P. Thru. Prin. Secy. Home Sectt. Lko. And
Others

Counsel for Petitioner :- Neera Yadav

Counsel for Respondent :- C.S.C.,Gaurav Mehrotra,Maria Fatima,Mohd.
Kausar Jah

Hon'ble Rajan Roy,J.

As prayed by Ms. Maria Fatima, learned counsel for the
contesting opposite party, list this case after three weeks.

(Rajan Roy,J.)

Order Date :- 13.12.2022

Shanu/-